

Advocates fret new rules for hiking, biking trails

Wednesday, March 02, 2011

By Jon Schmitz, Pittsburgh Post-Gazette

New federal rules that take effect this month are designed to make it easier for disabled people to use hiking and biking trails.

But some trail advocates are concerned that the rules could clear the way for all manner of motorized equipment, including all-terrain vehicles, dirt bikes, golf carts and Segways, which currently are banned from most trails.

Trail managers are working to develop policies that comply with the new Justice Department rules, which take effect March 15.

"It scares the heck out of me," said Judy Marshall, president of the Mon-Yough Trail Council, which manages part of the Great Allegheny Passage, a trail that connects Pittsburgh and Cumberland, Md.

"The trail right now is so user-friendly with bicycles, walkers and joggers. This new ruling opens up the door for some pieces of equipment or machines that could be dangerous because of the speeds, the noise and the pollution," she said.

"We want handicapped individuals to use the trail. We have to protect the other trail users, too. We have a lot of traffic on this trail."

The new rules require trail managers to allow persons with disabilities to use all types of "power-driven mobility devices" -- defined essentially as anything with a motor that can be driven -- unless they have performed an assessment that concludes operating such equipment would pose a safety or environmental hazard.

Safety determinations "must be based on actual risks and not mere speculation," said Janet Zeller, national accessibility program manager for the U.S. Forest Service, in a Web seminar about the new rules.

"A person who has a mobility-related disability can go on a trail in anything with a motor that can be driven, regardless of size or horsepower, UNLESS the land manager has documented that it has completed an assessment" using Justice Department guidelines, says an advisory on the website of American Trails, a national advocacy group.

In theory, even a pickup truck would meet the definition.

Moreover, the rules do not require proof of disability. A trail user can be asked to provide "credible assurance," which includes showing a handicapped parking placard or simply telling the trail manager that he or she is using motorized equipment because of a disability.

Trail advocates are worried that persons without disabilities will take advantage of the wording to bring dirt bikes, ATVs, electric bikes and other currently banned gadgets onto trails.

Linda McKenna Boxx, president of the Allegheny Trail Alliance, said the many local groups that own or manage trail segments are working on ways to comply with the new federal rules.

"We have always fully embraced having the trails accessible to those with mobility issues," she said, noting that motorized wheelchairs already are permitted. "We also have to maintain a safe environment for all of our users."

Ms. Marshall said the Regional Trail Corp., which owns the Yough River trail and three others in Westmoreland County, is working to develop a policy that complies with the Justice Department standards.

She said the corporation's board expects to vote on it on March 16, the day after the new federal rules take effect. She did not want to discuss details of what is being proposed.

Malcolm Sias, RTC president, also did not want to discuss details of the draft policy but said he didn't expect it to make major changes in what is permitted.

"We may allow some things that weren't allowed before," he said. "I don't think we're going to change a lot."

Ned Williams, president of the Montour Trail Council, said it had not adopted new policies yet.

"This is very much still being worked out," he said. "There's lots of complicating factors."

Jon Schmitz: jschmitz@post-gazette.com or 412-263-1868. Visit the PG's transportation blog, The Roundabout, at www.post-gazette.com/roundabout. Twitter: @pgtraffic.

First published on March 2, 2011 at 12:00 am